

## **CONTEST TERMS AND CONDITIONS**

The “*Skillup Inactive Learners Airpods Contest*” (“**Contest**”) is brought to you by Simplilearn Solutions Private Limited (“**Simplilearn**”/ “**we**”/ “**our**”/ “**us**”). Please read these specific and general terms and conditions (collectively hereinafter referred to as “**T&Cs**”) before entering this Contest. For the purposes of these T&Cs, wherever the context so requires “you” or “your” shall mean any natural person who is a participant in this Contest.

You agree that, by participating in this Contest, you will be bound by these T&Cs and you acknowledge that you satisfy all Contest eligibility requirements as provided herein below. By participating in this Contest you are deemed to have accepted this Contest T&Cs.

These Contest T&Cs are in addition to the Simplilearn.com Terms of Use and/or the Privacy Policy, as may be applicable, to which you agree by using the Simplilearn.com website or its corresponding mobile application / mobile site (collectively hereinafter referred to as “**Simplilearn.com**”). To the extent the Simplilearn.com Terms of Use are inconsistent with these Content T&Cs, these Contest T&Cs will prevail with respect to this Contest only.

### **SPECIFIC TERMS AND CONDITIONS:**

#### **Details of the Contest and How to Enter:**

1. This Contest will commence at 00:10:00 A.M. (IST) on 23<sup>rd</sup> February 2022 and end at 12:00:00 P.M. (IST) on 9<sup>th</sup> March, 2022, both dates inclusive (“**Contest Period**”), unless extended or revoked by Simplilearn, without prior notice and without any liability.
2. Only one entry per person is allowed for this Contest. Simplilearn reserves the right to disqualify any participants from the benefits of this Contest if any fraudulent activity is identified as being carried out for the purpose of availing this Contest.
3. In order to be eligible for this Contest, during the Contest Period, you must learn at least 1 (one) lesson of an existing SkillUp course or new SkillUp course (if existing course has expired). Participants' entries of learning lessons will be considered till 11:59:59 PM on 6th March, 2022
4. On 8<sup>th</sup> March at 10:00:00 A.M. all the eligible participants will receive google form by an email for submitting a write up expressing why they love SkillUp. Participant need to submit the google form by 12:00:00 P.M. on 9<sup>th</sup> March, 2022.
5. Amongst all the participants who participate in this Contest, during the Contest Period, Simplilearn, on the basis of most creative response, will select 1 winner and will be announced on 10<sup>th</sup> March 2022 at 6:00 P.M. (IST). The winner will be eligible to receive an Amazon voucher worth the price of 1 pair of Apple Airpods Pro (hereinafter referred as “**Prize**”). The Prize under this Contest is not for resale.
6. At the end of the Contest Period, the eligible participant, declared as the winner of this Contest, will be notified through email. Participants must make sure to check all folders in their email inbox on 10th March, 2022 to find the winner announcement.

### **GENERAL TERMS AND CONDITIONS:**

**1. ELIGIBILITY:** In addition to the specific eligibility criteria, you also need to fulfil the following general eligibility criteria to enter into this Contest:

- (a) You should be an individual legal resident of the Republic of India;
- (c) You should be of an age 18 years or above at the time of entry into this Contest.

**2. MAILING LIST:** By entering into this Contest, you consent to being placed on a mailing list for promotional and other marketing materials for Simplilearn. You may update or change your email preferences at the email preferences page.

**3. OTHER CONTESTS:** Please note that Simplilearn or its affiliates may be running similar contests or promotions at the same time as this Contest. By entering this Contest, you will not be eligible to receive any benefit and/ or prize awarded in any other promotion or contest unless you enter each promotion or contest separately. If you are declared a winner under this Contest, you will not be

eligible to receive any prize or benefit under any other similar contest or promotion run by Simplilearn during the Contest Period.

**4. PRIZES:** Subject to these T&Cs, during the Contest Period only 1 (one) Prize will be awarded to the winner under this Contest. The Prize under this Contest is not for resale.

Each Prize will be awarded "AS IS" and WITHOUT WARRANTY OF ANY KIND, express or implied (including, without limitation, any implied warranty of merchantability or fitness for a particular purpose). There are no cash or other prize alternatives available in whole or in part. However, in circumstances beyond control, Simplilearn may substitute a similar alternative prize of equal or greater value in its sole discretion. The Prize is non-transferable, non-exchangeable for cash. The Prize cannot be clubbed with any other Contest/ Offer / Facility / Right.

**5. ODDS OF WINNING:** Odds of winning depend on the number of eligible entries received. Eligible entries are ones that satisfy the eligibility criteria outlined above and follow the steps outlined in the '*Details of the Contest and the How to Enter*' section above.

**6. ADDITIONAL TERMS:** Simplilearn may, to the maximum extent permitted by applicable law and in its sole discretion, change the Contest T&Cs or cancel the Contest at any time; or modify, terminate, or suspend the Contest should viruses, worms, bugs, unauthorized human intervention or other causes beyond our control corrupt or impair the administration, security, fairness or proper play of the Contest or submission of entries. In such an event, Simplilearn may at its sole discretion make available the modified T&Cs or appropriate communication, in the manner as may be determined by Simplilearn from case- to-case basis.

Simplilearn or its affiliates will not be responsible for: (a) lost, misdirected, late, incomplete, or unintelligible entries or for inaccurate entry information, whether caused by you or by any of the equipment or programming associated with or utilized in the Contest, or by any technical or human error that may occur in the processing of entries; (b) any printing or typographical errors in any materials associated with the Contest; (c) any error in the operation or transmission, theft, destruction, unauthorized access to, or alteration of, entries, or for technical, network, telephone, computer, hardware or software, malfunctions of any kind, or inaccurate transmission of, or failure to receive any entry information on account of technical problems or traffic congestion on the internet or at any website; or (d) injury or damage to your or any other computer or mobile resulting from downloading any materials in connection with the Contest.

Simplilearn may, in its sole discretion, disqualify any participant found to be: (a) tampering with the entry process or the operation of the Contest; (b) acting in violation of these Contest T&Cs; or (c) acting in an unsportsmanlike or disruptive manner or with intent to annoy, abuse, threaten or harass any other person.

The authorized subscriber of the e-mail account used to enter the Contest at the actual time of entry will be deemed to be the participant and must comply with these T&Cs in the event of a dispute as to entries submitted by multiple users having the same e-mail account. The authorized account subscriber is the natural person who is assigned an e-mail address by an internet access provider, on-line service provider, or other organization responsible for assigning e-mail addresses for the domains associated with the submitted e-mail addresses. No benefits greater than those described in the '*Details of the Contest and How to Enter*' section above in these T&Cs will be awarded.

**7. PUBLICITY RELEASE** By participating in this Contest, you give Simplilearn and its affiliates permission to use your name and image, as such may be embodied in any pictures, photos, write-ups, video recordings, audiotapes, digital images, and the like, taken or made in relation to the Contest and any promotions, events, or contests to follow.

You agree that Simplilearn and its affiliates has the right to publish your saved item details for any communication, promotions, events, or contests that follow. You agree that Simplilearn has complete ownership of such write-ups, pictures, etc., including the entire copyright, and may use them for any purpose. These uses include, but are not limited to illustrations, bulletins, exhibitions, videotapes, reprints, reproductions, publications, advertisements, and any promotional or educational materials in any medium now known or later developed, including the internet. You acknowledge that you will not receive any compensation, etc. for the use of such pictures, etc., and hereby release Simplilearn and

its affiliates and its agents and assigns from any and all claims which arise out of or are in any way connected with such use. You give your consent to Simplilearn, its agents and assigns to use your name and likeness to promote the Contest and any promotions, events, or contests to follow. You understand that, by participating in the Contest, you are sharing your data with Simplilearn and its affiliates.

**8. FORCE MAJEURE:** This Contest is subject to force majeure circumstances including without limitation, floods, natural disasters, war, act of terror, political unrests, technical snags, act of God or any circumstance beyond the reasonable control of Simplilearn or its affiliates ("**Force Majeure Event**"). Simplilearn or its affiliates shall be not liable for any delay or adverse effect caused to the participants in the Contest including the winners as a result of a Force Majeure Event.

**9. LIABILITY RELEASE:** This Contest is being made purely on a "best effort" basis and participating in this Contest is voluntary. By participating in the Contest, you will be legally bound hereby, to release from liability, and hold harmless Simplilearn and its affiliates, any of its employees or agents representing or related to Simplilearn and its services/products for any matters in relation to the this Contest, including the Prize. This release is for any and all liability for personal injuries (including death), property loss or damage, and misuse of the benefits/ Prizes offered under this Contest, in connection with any activity or directly or indirectly, by reason of the acceptance, possession, or participation in the Contest, even if caused or contributed to by our negligence.

**10. QUERIES:** Please direct any questions, comments or complaints related to this Contest to [skillup@simplilearn.com](mailto:skillup@simplilearn.com). This Contest is in no manner sponsored, endorsed or administered by, or associated with Amazon.in.

**11. PRIVACY NOTICE:** All information submitted in connection with this Contest will be treated in accordance with these Contest T&Cs and the Privacy Policy available at [Simplilearn.com](https://www.simplilearn.com).

**12. MISCELLANEOUS:** The Contest is governed by the laws of the Republic of India. The Contest and all accompanying materials are copyright of Simplilearn. All rights reserved. No requests for transfer or assignment or redemption of the benefits under this Contest shall be entertained. You agree that all decisions related to the Contest by Simplilearn are final and binding on you. Failure by Simplilearn to enforce any of these Contest T&Cs in any instance shall not be deemed to be a waiver of the Contest T&Cs and shall not give rise to any claim by any person. These Contest T&Cs are subject to Indian laws and the courts at Bangalore shall have the exclusive jurisdiction in respect of any disputes or any matter arising here from.